

24STCV06140 24STCV06140

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C06%2F24%2F2026

Source SHA-256: 798071227d66f731a39dbafdb7265bc37ac6c6aabca3fb72342c8cbf379a7ffe

Case Number: 24STCV06140 Hearing Date: June 24, 2026 Dept: 414

24STCV06140

Rosa Rivera v. Select Orthopedic Specialists, et al.

Thursday,

June 24, 2026

[TENTATIVE] ORDER DENYING MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

I. BACKGROUND

The

complaint alleges Defendant was negligent in providing orthopedic care to Plaintiff's fracture of her hand.

Plaintiff

now moves to file a second amended complaint to clarify the allegations and add additional details. Additionally, Plaintiff appears to seek amendment with respect to the 90-day notice of intent required to be served on a physician before filing the complaint.

Defendants

argue the notice is defective as it does not state the date, time, and place of the hearing. Plaintiff did not attach the proposed second amended complaint.

II. LEGAL STANDARDS

Leave

to amend is permitted at the court's discretion upon any terms that may be just. (Code Civ. Proc., § 473 subd. (a)(1)).

The statute is liberally construed to permit amendment of the pleadings "unless an attempt is made to present an entirely different set of facts by way of the amendment." (Atkinson v. Elk Corp. (2003)

109 Cal.App.4th 739, 760). The motion must be supported by a declaration stating the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324.)

If

the motion is timely made, and the granting of the motion will not result in prejudice to the opposing party, it is error to refuse permission to amend. (Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Where denial of the motion will result in a party being deprived of the right to assert a meritorious cause of action, "it is not only error but an abuse of discretion." (Id.) Amendments are permitted up to the date of trial or during trial where no prejudice is shown to the adverse party. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761).

III. DISCUSSION

With respect to the defects in the notice of motion, Defendant has not shown any prejudice resulting from the defects. Defendant was able to file an opposition, which the court has considered. The court has discretion to consider late papers in favor of the strong policy favoring disposition of the case on the merits. (Kapitanski v. Von's (1983) 146 Cal.App.3d 29, 32). ["Judges are well aware of the unnecessary burdens placed on courts and counsel when strict compliance with local procedural rules results in the expenditure of unnecessary time and money for the preparation of later section 473 motions."]. Defendants have not shown any prejudice arising from the late filing. (Id.) The Court has considered Defendant's reply.

Plaintiff

did not comply with the procedural requirements of Cal. Rules of Court, rule 3.1324 in that Plaintiff did not include a copy of the amended pleading and state what changes (additions or deletions) are being made by page, paragraph, and line number. (CRC rule 3.1324.)

Plaintiff's

declaration does not state the effect of the amendments, why the amendments are necessary and proper, when the facts giving rise to the amended allegations were discovered; and the reasons why the request for amendments were not made earlier. (Id.)

IV. CONCLUSION

Based

on the foregoing, Plaintiff's motion is DENIED.